

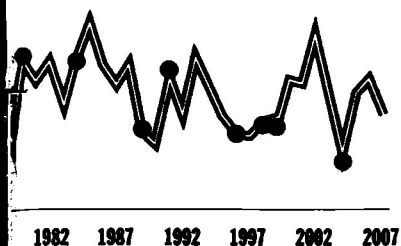
Thanks to the fragile nature of the UPA's majority, numerous bills are yet to see the light of the day in both Houses

had blocked several of the bills. In fact, till June 2008, all ministers in the UPA were expected to inform and consult the Left parties on any bill that they planned to move. The Left blocked big-tag reform bills like those on pension and banking reforms but not every economic bill was blocked by those providing outside support. To a large extent, UPA allies themselves were wary of headline reforms—be it in the SEZ domain or even in the move to modernise economic laws.

The BJP had informally agreed to support the move to raise the cap for foreign direct investment in insurance, the pension fund bill and the banking reforms. If politics was only a matter of arithmetic, the bills could've been passed long back given the fact that between them, the BJP and Congress have absolute majority. But that was not to be because the UPA depended on the 60 Left MPs. Now even though the Left has pulled out, the UPA can't push through any bill, thanks to the fragile nature of its majority. Worse, they can't encash the rain cheque issued by the BJP as the saffron party—mauled by the trust vote of July—has sworn to block any bill presented by the UPA. It can now be said that barring a few like the Companies Bill 2008, not many will pass the vote in the lower or the upper House.

—by Shankar Aiyar

● Election years



Courtesy: PRS Legislative Research

IN THE QUEUE

THE COMPANIES BILL, 2008: Introduced in the Lok Sabha. Aims to overhaul and revamp the archaic 1956 Companies Act.

THE LIMITED LIABILITY PARTNERSHIP BILL, 2008: Passed by the Cabinet a few months back, the bill aims to level the playing fields between private companies and partnerships.

THE UNORGANISED SECTOR WORKERS' SOCIAL SECURITY BILL, 2007: Aims to bring social security benefits to over 300 million workers in the unorganised sector.

THE PENSION FUND REGULATORY AND DEVELOPMENT AUTHORITY BILL, 2005: Will enable government employees, private enterprises and individuals gain access to long-term retirement plans.

THE BANKING REGULATION (AMENDMENT) BILL, 2005: Will remove cap of 10 per cent and allow promoters voting rights to the extent of their shareholding.

THE LAND ACQUISITION (AMENDMENT) BILL, 2007 AND THE REHABILITATION AND RESETTLEMENT BILL, 2007: Both are critical to the success of the big-tag Special Economic Zones idea of the UPA regime.

THE FACTORIES (AMENDMENT) BILL, 2005: The bill authorises the states to allow women to be employed between 7 p.m. and 6 a.m. in specified factories.

LABOUR LAWS AMENDMENT AND MISCELLANEOUS PROVISIONS BILL, 2005: It limits the application of an earlier Act to establishments with 500 or fewer employees. Both the bills are critical to the Government's labour reforms agenda.



“They think that they will get political mileage as well as media attention by making noise.”

SOMNATH CHATTERJEE, LOK SABHA SPEAKER

the legislative process.

The larger picture is anything but perfect. This year till date, the Parliament has met for just 36 days, lowest in its history. Even if it meets again in December, it is unlikely that the number of business days will go beyond 50. The Lok Sabha functioned for just 66 days in 2007, and it worked 4.3 hours per day on an average as against the scheduled six hours. The Rajya Sabha isn't too far either. It worked for 3.3 hours as compared to the scheduled five hours each day. As per the Lok Sabha Secretariat estimates, every minute of the session costs the exchequer Rs 23,083.

Even the UPA can't boast of setting a good record of legislation. The number of bills passed in 2007 was 46, which is lower than the 65 bills passed in the previous year. Since 1952, the Parliament had passed an average of 60 bills every year. But the story is a lot different now with many legislations pending in the House. Despite bidding 'good riddance' to the Left, the legislation which would have set the pace for Manmohan Singh's economic agenda is still in deep freeze. Even the bills without any political limitations are waiting for clearance, for reasons unknown.